

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
12/9/2023 4:32 PM

Entry Number
6,312

* Indicates a required field

Your information

Complainant 1

Your name
KOSTIANTYN MARS

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
ANDREA ELIZABETH FLINT

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

11/28/2023, 11/13/2023, 10/25/2023, 09/13/2023, 09/07/2023, 08/01/2023, 07/31/2023, 06/29/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Kostiantyn Mars

PO Box 8081

San Jose, CA 95155

(408) 518-0088

Constantine.Mars@gmail.com

Commission on Judicial Performance

455 Golden Gate Avenue, Suite 14400

San Francisco, CA 94102

(415) 557-1200

COMPLAINT NO. 10TH ABOUT JUDGE ANDREA E. FLINT
OF SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA
AND VERIFIED WRITTEN STATEMENT OF DISQUALIFICATION OF JUDGE FLINT
ADDRESSED TO PRESIDING JUDGE OF SUPERIOR COURT
HONORABLE BETH MCGOWEN

Dear Staff Counsel Tania Schrag and Members of the Commission on Judicial Performance,

I kindly ask your for help with immediate disqualification of Judge Andrea E. Flint, License No.: 186714, her mandatory recusal from case 22FL003144, and complete resignation of Judge Flint from Superior Court of California due to intentional severe and repetitive abuse of judicial power, intentional and demonstrative repetitive violation of the Law, massive falsifications of Court records, suspect of bribery, intentional and demonstrative abuse of judicial power and severe retaliation to me, Petitioner, party in the case 22FL003144, for requesting Judge Flint to stop falsifications and obey the Law in the Courtroom.

Please see attached Verified Written Statement of Disqualification of Judge Flint (Amended), addressed to Presiding Judge Honorable Beth McGowen, filed on 11/30/2023, and list of evidence attached. This Verified Written Statement states legal basis for disqualification as "impermissible personal conflict with the Petitioner, party in the case" – which is the mildest and most respectful reason that Honorable Beth McGowen can use to disqualify Judge Flint in the most "honorable" way, taking into account massive amount of falsifications, severe judicial misconduct and repetitive violations of the Law, made by Judge Flint.

I would emphasize, that personal conflict of interest is only a step in favor of Judge Flint, because she did

massive, severe and repetitive violations of the Law (including CCP 170.1, 170.3 which requires Judge who has personal interest in the case – either financial interest, or conflict of interest, to recuse themselves), massive falsifications of court records, including removal of signed emergency screener recommendations (06/29/2023), removal of statements made on record in Courtroom, demonstratively retaliating to Petitioner by making harmful and wrongful orders of equalizing payments that go completely against facts and community balances, which knowingly cannot be obeyed due to filed with the Court current statements (11/13/2023), repetitively refused to recuse despite obvious and undeniable conflict of interest with Petitioner, party in the case, and despite confirmed by Judge Flint personal financial interest in the case 22FL003144 – in total Judge Flint refused to recuse 8 (EIGHT) times: 11/13/2023, 10/25/2023, 10/24/2023, 09/13/2023, 09/12/2023, 09/07/2023, 09/05/2023, 08/09/2023.

Those cases of repetitive refusal to recuse alone worth attention, but besides them Judge Flint demonstrated extreme abuse of judicial power and absolutely unreasonable prejudice against me, Petitioner on the case, and ruling solely in favor of Respondent (who has documented history of child and elderly abuse, documented history of international child abduction and is suspected in bribing Judge Flint in April 2023) – by intentionally making extremely harmful and wrongful orders and falsifying court records at least 7 (SEVEN) times: 11/13/2023, 10/25/2023, 09/13/2023, 09/07/2023, 08/01/2023, 07/31/2023, 06/29/2023.

On 11/28/2023 Judge Flint granted Respondents DVRO against me without consideration – granting complete prohibition of all contact with my son, who Respondent physically and emotionally abusing, having full custody and holding my son hostage in undisclosed location. Grounds for Respondent's DVRO are that I was greeting my son with his 8th Brithday, hugged my son and made Max happily smile in violation of orders of Judge Flint from 06/29/2023.

At the same time my opposing DVRO from 11/29/2023, requesting protection of my son from domestic violence of Respondent, who was physically and emotionally abusing my son on camera on Max's Birthday, was denied because "the allegations are inconsistent with the current Court orders". Which means that harmful and wrongful orders of Judge Flint, suspected of bribery, must be nullified before Court could even consider protection of my son from mother-abuser with documented history of child and elderly abuse.

Opposing DVROs between me, Petitioner on the case 22FL003144, and Respondent, filed about 11/28/2023 – 11/30/2023, by their nature clearly explain conflict of interest between me and Max's biological mother, who was beating my son, abducted Max and promised me by all legal and illegal means to abduct our child outside of the United States and "bury our son in Ukrainian soil, so you will never see him again".

I asked Hanna to stop domestic violence against our child, allow Max to feel love and support, and focus our efforts on healthy co-parenting, with Max's safety and best interest as the top priority. In response Hanna promised to kill my grandmom (defenseless 95 years old senior woman with disabilities, who Hanna violently kicked out from home and put into terminal condition), and to abduct and "bury our son in Ukrainian soil, so you will never see your son again" (which she couldn't do only because she never had access to Max's passport, due to her violence, documented history of international child abduction, and attempts to cancel Max's Green Card and steal Max's passport).

Being unable to abduct my son outside of the United States (because she didn't get passport of my son by fraud with falsehood DVRO in September 2022), Hanna abducted my son to undisclosed location, and blocked all our contact, even phone calls. She pulled out sim card from Max's phone so Max cannot reach neither me, no 9-1-1, blocked all our chats and messengers, and terrorized my son for more than year, until Max accepted that he "MUST BECOME EVIL LIKE MOM, THERE IS NO OTHER WAY", and "IF WE DON'T SEE EACH OTHER – THERE WILL BE NO MORE TROUBLE".

Judge Flint was presented evidence of previous international child abduction, witness statements confirming Hanna's threats and plans to abduct Max outside of the United States to Ukraine in 2022 again, was presented lots of evidence about Max's life, our strong bond and my focus on protecting Max and creating nurturing, supportive environment for my son (being in school council and PIQE are just two of whole bunch of activities I did as caring and thoughtful parent).

But having all evidence on hand, together with signed emergency screener recommendations, Judge Flint removed signed emergency screener recommendations, and ignored all evidence.

Orders of Judge Flint made on 06/29/2023 led to child abduction of my son, Max Mars in April 2023, who is now held hostage in undisclosed location by mother-abuser, without any means for communications (mother blocked all contact and even phone calls, pulled out sim card from child's phone to prevent Max from being able to call neither me, nor 9-1-1). Max's biological mother, who went on child abduction has documented history of child and elderly abuse, and this was brought to attention of Court multiple times, but Judge Flint, suspected of bribery, falsified court records, denied and removed signed Emergency Screener recommendations, and granted full custody to mother-abuser.

Judge Flint also ordered me no contact with my son, and to give up passport and documents of my son to mother-abuser, who threatened me to abduct and "bury our child in Ukrainian soil".

Mother-abuser has documented history of international child abduction back in 2019-2020, and documented by witness statements threats (or say it politely "statements") of plans to abduct my son outside of the United States to Ukraine in times of war – which by itself is extremely dangerous of life of my son, Legal Permanent Resident of the United States.

Mother-abuser, threatening to never return my son back home to the United States, forced me back in 2020 to sign Travel Authorization Consent, that allows her to travel with my son outside of the United States without my permission for the next 10 years. Which means – having passport of my son, Respondent can freely abduct my son outside of the United States and, as she threatened "you will never see your son again" (not mentioning threat to "bury our child in Ukrainian soil").

Judge Flint completely ignored all evidence, falsified court records, removed signed Emergency Screener recommendations, granted full custody to mother-abuser, and ordered me to give up passport of my son to mother-abuser, therefore facilitating international child abduction of my son.

On Max's 8th Birthday, 11/23/2023 and 11/24/2023 mother-abuser on camera physically and emotionally abused my son, grabbed, dragged my son forcibly, forced my son to fight back to get rid from her forcible clinch, and she harassed my son and forced him to feel sorry and scared of receiving greetings from his father, because mother threatens that "if you don't see father – there will be no trouble". Besides that Respondent abducted my son to undisclosed location, blocked all contact with my son and pulled out sim card from Max's phone to ensure that Max cannot reach neither me, nor 9-1-1.

Besides obvious desire to humiliate, torture and prohibit my son from being happy and having healthy contact with father, Respondent motivated her violence against my son by "court orders" – meaning harmful and wrongful orders signed by Judge Flint on 06/29/2023.

Using that motivation Respondent physically and emotionally abused my son on my eyes, and then locked up my son and called police on me for greeting my son with Birthday, and filed DVRO prohibiting us with Max from all contact.

There is opposing DVRO against Respondent on case 22FL003144 dated 11/30/2023, which describes what exactly happened, and how Respondent physically and emotionally abuses my son, while unlawfully and unethically detaining my son, motivating it by falsifications and wrongful and harmful orders of Judge Flint.

My opposing DVRO also contains request of resignation of Judge Flint, who ordered my son to become prisoner of mother-abuser for more than year, completely blocking all contact with father, who protected child from mother's violence, physical and emotional abuse.

I would emphasize that Judge Flint denied not only contact with my son, but also:

- Child Abduction Prevention Orders (recommended by Emergency Screener);
- Mental health treatment to mother-abuser (recommended by Emergency Screener);
- Parenting Counseling
- Minor's Counsel
- And all signed Emergency Screener Recommendations, unreasonably removed from Court records by Judge Flint, suspected of bribery

Request to reconsider order was denied by Judge Flint without any consideration.

Another significant piece of evidence that confirms that Judge Flint shamelessly abuses judicial power and must resign immediately – orders 11/13/2023 and Motion to Reconsider Order 11/13/2023, filed with the Superior Court on 11/20/2023, which in details demonstrates calculation of Equalizing Payment, for both options – legal option that includes all community assets and debts, and illegal option, requested by Judge Flint, which requests to ignore car loans.

Both options of Equalizing Payment calculation lead to result that Respondent is legally obliged to pay Equalizing payment to me, Petitioner. (we may omit the fact that maybe I would forgive Respondent that payment, if she wouldn't bribe Judge Flint and wouldn't terrorize and victimize my son – and normally I wouldn't care about those money)

But what is obvious and alarming – that Judge Flint ordered completely opposing wrongful amount of payment. Equalizing Payment that was ordered by Judge Flint goes completely against community bank statements, law and even basic math: Judge Flint ordered me, Petitioner, to pay Respondent Equalizing Payment which is twice bigger than amount of actual Equalizing Payment, and has opposite sign (direction) – Judge ordered me to pay Respondent, while actual balance of community assets and debts requires equalizing payment from Respondent to Petitioner.

Which is obvious sign of abusing judicial power and shameless retaliation to me, Petitioner, for reporting Judge for suspect of bribery and severe repetitive misconduct, and for requesting on record that Judge Flint stop falsifications to obey the Law in Courtroom, and consciously recuse.

Pursuant CCP 170.1, 170.3 Judge who has personal interest in the case, and who has personal conflict of interest with the party in the case, is legally obliged to recuse themselves, and allow another, impartial Judge to hear the matter.

But Judge Flint repetitively violated the Law, completely ignored CCP 170.1, 170.3 and retaliated to me, Petitioner in this case, demonstratively abusing judicial power and ordering massive wrongful financial sanctions against me.

I kindly ask Commission on Judicial Performance for help with restoring impartiality of Court process, and with protecting reputation of California Superior Court.

I kindly ask to enforce recusal of Judge Flint from the case 22FL003144, and complete resignation of Judge Flint from Superior Court of California, to restore impartiality of the Court Process, and to allow another impartial Judge to hear the matter.

Please feel free to reach me directly if any additional information needed:
Phone: (408) 518-0088,

Email: Constantine.Mars@gmail.com

Thank you for your prompt attention to this matter in such a challenging situation.

[ENCLOSED: VERIFIED WRITTEN STATEMENT OF DISQUALIFICATION, LIST OF EVIDENCE 1-45, RESPONSE AND COMPLAINT 11/19/2023, COMPLAINT 09/16/2023,]

KOSTIANTYN MARS

Sincerely,

DATED: December 9, 2023

File Upload

00 - Complaint to Judicial Commission 2023-12-08.pdf

01 - Verified Written Statement Of Disqualification.pdf

02 - Evidence for Verified Written Statement - Part 1 - Evidence 1 - 2.pdf

03 - Evidence for Verified Written Statement - Part 2 - Evidence 3.pdf

07 - Response to Judicial Commission and Complaint 2023-11-17.pdf

08 - Complaint to Judicial Commission 2023-09-16.pdf

05 - Evidence for Verified Written Statement - Part 4 - Evidence 27 - 37.pdf

04 - Evidence for Verified Written Statement - Part 3 - Evidence 4 - 26.pdf

06 - Evidence for Verified Written Statement - Part 5 - Evidence 38 - 45.pdf